

Sushil Kumar & Anr vs Anita Kumari on 13 June, 2024

IN THE HIGH COURT OF HIMACHAL PRADESH, SHIMLA CMPMO No.44 of 2024 Reserved on 22.05.2024 .

Date of decision: 13. 06.2024

Sushil Kumar & Anr.

...Petitioners.

Versus

Anita Kumari.

...Respondent.

Coram:

Hon'ble Mr Justice Rakesh Kainthla, Judge.

Whether approved for reporting? 1 For the petitioners : Mr. N.S. Chandel, Senior Advocate, with Mr. Vinod Gupta, Advocate.

For the respondent : Mr. Neel Kamal Sharma, Advocate.

Rakesh Kainthla, Judge The present petition is directed against the judgment dated 18.12.2023 passed by learned Additional Sessions Judge, Hamirpur ('First Appellate Court') vide which the appeal filed by the petitioners (respondents before the Trial Court) was dismissed and the order dated 04.11.2022 passed by learned Chief Judicial Magistrate, Whether reporters of Local Papers may be allowed to see the judgment? Yes Hamirpur ('Trial Court') was upheld. (Parties hereinafter be referred to in the same manner as they were arrayed before .

the learned Trial Court for convenience).

2. Briefly stated, the facts giving rise to the present petition are that the complainant filed a complaint before the learned Trial Court seeking directions to restrain the respondents from committing any act of domestic violence against her, compensation of 1,00,000/-, maintenance at the rate of 20,000/- per month and sufficient space in the household to reside. A direction was

sought to the respondents not to boycott the complainant socially and also not to force others to do so. It was asserted that the marriage between the complainant and respondent No. 1 was solemnized in 2010 as per Hindu rites and customs. The complainant resides with her son in a single room in a shared household. The accommodation given to the complainant was not sufficient, so she requested respondent No.2 to open one more room since she had locked all the rooms; however, respondent No.2 refused to do so. Both the respondents started harassing the complainant. Hence, the present petition was filed to seek various reliefs.

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3. The petition was opposed by filing a reply, denying the contents of the application. However, the marriage between the complainant and respondent No.1 was not disputed. It was asserted that respondent No.1 has provided sufficient maintenance to the complainant and her son. The complainant is pressurizing respondent No.1 to reside separately from her parents but he is not willing to do so. The respondents never harassed the complainant and did not boycott her. The complaint was filed without any basis;

hence, it was prayed that the same be dismissed.

4. An application under Section 23 of the Protection of Women from Domestic Violence Act, 2005, (for brevity '2005 Act') was filed by the complainant seeking a direction to the respondents to provide maintenance at the rate of 20,000/- and two rooms for living.

5. The Learned Trial Court held that respondent No.1 has not paid any educational expenses for his child since 2020. The expenditure for raising the child should be borne by both parents, especially when they are working.

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Hence, respondent No.1 was directed to pay 8,000/- per month to the complainant to meet the education and other expenses for raising the minor son. It was further held that the complainant is earning 43,000/- per month and she can easily maintain herself. The accommodation provided to the complainant and her son was not sufficient, the house had one bedroom-cum-store, which was locked without any justification. Therefore, a direction was issued to unlock the bedroom-cum-store on the same floor, on which the complainant was residing.

6. Being aggrieved from the order of the learned Trial Court, the respondents filed an appeal, which was decided by the learned First Appellate Court. The learned First Appellate Court concurred with the findings recorded by the learned Trial Court that respondent No.1 was bound to maintain his son and maintenance of 8,000/- for this purpose was sufficient. It was also held that the complainant required one room for herself and one room for her son, and the house had sufficient accommodation to provide a separate room for the son. There is no infirmity in the .

direction issued by the learned Trial Court, hence the appeal was dismissed.

7. Being aggrieved from the orders passed by learned Courts below, the present petition has been filed asserting that the learned Courts below failed to appreciate that the accommodation provided to the complainant should be reasonable and cannot be at the expense of other family members. The complainant's husband inherited the property from his father, which consists of two floors. The other legal heirs, i.e. the mother and the brother have also inherited the property in addition to the complainant's husband. 815 sq. ft.

area was given to the complainant on the ground floor and 135 sq. ft. area is in possession of the mother of the complainant's husband. The complainant is in possession of 1/3rd share and this aspect was ignored by the learned Courts below. The husband was ready to hand over the possession of the other house to the complainant, in case she so desired. In case one room on the ground floor is given to the complainant, the husband's mother would be forced to reside on the first floor, which is very difficult for her .

considering her old age. Therefore, it was prayed that the present petition be allowed and the order passed by learned Courts below be set aside.

8. I have heard Mr. N.S. Chandel learned Senior Advocate, assisted by Mr Vinod Gupta, learned counsel for the petitioners herein and Mr Neel Kamal Sharma, learned counsel for the respondent/complainant.

9. Mr. N.S. Chandel, learned Senior Counsel, submitted that the learned Courts below erred in directing to provide a specific accommodation to the complainant. This is not permissible, as the 2005 Act does not contemplate any such order. Learned Courts below also erred in exceeding the jurisdiction vested in them; therefore, he prayed that the present petition be allowed and the orders passed by learned Courts below be set aside.

10. Mr. Neel Kamal Sharma, learned counsel for the respondent/complainant supported the orders passed by learned Courts below and submitted that no interference is required with the same. He relied upon the judgments of the .

Hon'ble Supreme Court in Criminal Appeal No.511 of 2022 titled 'Prabha Tyagi vs. Kamlesh Devi' decided on 12.05.2022 and Madras High Court in CRP(PD) (MD) No.2081 of 2010 titled 'M. Muruganandam & Anr. vs. M. Megala' decided on 02.12.2010.

11. I have given considerable thought to the submissions at the bar and have gone through the records carefully.

12. The present petition has been filed under Article 227 of the Constitution of India. It was laid down by the Hon'ble Supreme Court in Garment Craft v. Prakash Chand Goel, (2022) 4 SCC 181: (2022) 2 SCC (Civ) 424: 2022 SCC OnLine SC 29 that the power under Article 227 of Constitution of India is correctional to set right grave dereliction of duty, flagrant abuse or violation of the fundamental principle of law or justice. It was observed:

15. Having heard the counsel for the parties, we are clearly of the view that the impugned order [Prakash Chand Goel v. Garment Craft, 2019 SCC OnLine Del 11943] is contrary to law and cannot be sustained for several reasons, but primarily for deviation from the limited jurisdiction exercised by the High Court under .

Article 227 of the Constitution of India. The High Court exercising supervisory jurisdiction does not act as a court of first appeal to reappreciate, or reweigh the evidence or facts upon which the determination under challenge is based. Supervisory jurisdiction is not to correct every error of fact or even a legal flaw when the final finding is justified or can be supported. The High Court is not to substitute its own decision on facts and conclusion, for that of the inferior court or tribunal. [Celina Coelho Pereira v. Ulhas Mahabaleshwar Kholkar, (2010) 1 SCC 217: (2010) 1 SCC (Civ) 69] The jurisdiction exercised is in the nature of correctional jurisdiction to set right grave dereliction of duty or flagrant abuse, violation of fundamental principles of law or justice. The power under Article 227 is exercised sparingly in appropriate cases, like when there is no evidence at all to justify, or the finding is so perverse that no reasonable person can possibly come to such a conclusion that the court or tribunal has come to. It is axiomatic that such discretionary relief must be exercised to ensure there is no miscarriage of justice.

16. Explaining the scope of jurisdiction under Article 227, this Court in Estralla Rubber v. Dass Estate (P) Ltd. [Estralla Rubber v. Dass Estate (P) Ltd., (2001) 8 SCC 97] has observed: (SCC pp. 101-102, para 6) "6. The scope and ambit of exercise of power and jurisdiction by a High Court under Article 227 of the Constitution of India is examined and explained in a number of decisions of this Court. The exercise of power under this article involves a duty on the High Court to keep inferior courts and tribunals within the bounds of their authority and to see that they do the duty expected or required of them in a legal manner. The High Court is not vested with any unlimited prerogative to correct all kinds of .

hardship or wrong decisions made within the limits of the jurisdiction of the subordinate courts or tribunals. Exercise of this power and interfering with the orders of the courts or tribunals is restricted to cases of serious dereliction of duty and flagrant violation of fundamental principles of law or justice, where if the High Court does not interfere, a grave injustice remains uncorrected. It is also well settled that the High Court while acting under this Article cannot exercise its power as an appellate court or substitute its own judgment in place of that of the subordinate court to correct an error, which is not apparent on the face of the record. The High Court can set aside or ignore the findings of facts of an inferior court or tribunal if there is no evidence at all to justify or the finding is so perverse, that no reasonable person can possibly come to such a conclusion, which the court or tribunal has come to."

13. Section 19 (1)(a) of the 2005 Act, provides for the orders, which can be passed by a Magistrate. It provides that a Magistrate can pass a residence order restraining the respondent from dispossessing or in any other manner disturbing the possession of the aggrieved person from the shared household.

14. Section 19(1)(f) of the 2005 Act empowers the Magistrate to direct the respondent to secure the same level .

of alternate accommodation for the aggrieved person as was enjoyed by her in the shared household or to provide rent for the same.

15. Section 23 of the 2005 Act deals with the power to grant interim orders, which can be passed by Magistrate under Sections 18, 19, 20, 21 or 22 of the 2005 Act.

16. It is apparent from the bare perusal of the aforesaid Sections that there is a distinction between Sections 19(1)(a) and 19(1)(f) of the 2005 Act. While under Section 19(1)(a) of the 2005 Act, an order can be passed not to dispossess the aggrieved person from the shared household, an order can be passed under Section 19(1)(f) of the 2005 Act to provide equivalent accommodation in a separate residence. A similar view was taken in M. Maruganandam's case (supra), in which it was held as under:-

22. But in my considered view, the above contention is thoroughly misconceived. In so far as a woman's right of residence is concerned, the Act contemplates two types of reliefs. One is the right to reside in the shared household, protected under Section 17. The other is the right to seek residence orders under Section 19.

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23. Section 19(1) empowers the Magistrate to pass a variety of residence orders viz.,

(i) restraining the respondent from dispossessing the aggrieved person from the shared household;

(ii) directing the respondent to remove himself from the shared household;

(iii) restraining the respondent and his relatives from entering any portion of the shared household in which the aggrieved person resides;

(iv) restraining the respondent from renouncing his interests in the shared household except with the leave of the Magistrate; and

(v) directing the respondent to secure the same level of alternative accommodation, as enjoyed by the aggrieved person in the shared household or to pay rent for the same.

24. Sub Section (2) of Section 19 empowers the Magistrate to pass any other direction also, as is necessary to protect or provide for the safety of the aggrieved person or any child of such person. Sub Section (6) of Section 19 enables the Magistrate to impose on the respondent, obligations relating to the discharge of rent and other payments.

25. A combined reading of Sections 17 and 19 would show that it is only when a protection order under Section 17 read with clauses (a), (b), (c), (d) and (e) of Sub Section (1) of Section 19 is claimed, that the property in respect of which it is claimed, should fall within the definition of the expression "shared household" under Section 2(s). To put it in simple terms, if an aggrieved woman seeks either a protection order to enable her to continue to reside in the shared household or a residence order to enable her to reside in the shared household, then the .

property which forms the subject matter of the claim should be a "shared household", within the meaning of the Act.

26. But when a woman merely seeks the relief of alternative accommodation, under Section 19(1)(f), then it is not in respect of the shared household itself. The expression "shared household" is used in Section 19(1)(f), only for the purpose of comparison. In other words, the expression "shared household" is used in Section 19(1)(f), just for the purpose of enabling an aggrieved woman to seek an alternative accommodation, which would be on par with a shared household that she once enjoyed at some point of time."

17. Therefore, it is not permissible for the Magistrate to direct that a certain level of accommodation be provided to the aggrieved person in a shared household and the only order which can be passed regarding shared household is to restrain the respondent from dispossessing the aggrieved person from it. The submission of Mr. N.S. Chandel learned Senior Counsel has to be accepted to this extent.

18. It has been concurrently found by both the learned Courts below that the respondents have put a lock on the room, which amounts to the dispossession of the complainant from the shared household. The complainant has a right to use the shared household and she cannot be .

deprived of the use of any part of the same. Hence, the act of the respondents in putting the lock and dispossessing her from the shared household cannot be upheld.

19. Thus, the learned Courts below had rightly held that the respondents cannot put the lock on any part of the shared household and they are liable to remove the same from the room. Therefore, there is no infirmity in the directions issued by the learned Courts below.

20. Consequently, the present petition fails and the same is dismissed. The observations made hereinbefore shall remain confined to the disposal of the present petition.

21. Petition stands disposed of, so also the pending application(s), if any.

(Rakesh Kainthla) th 13 June, 2024 Judge (Pardeep)